

“Provided the State of destination does not object, the present Convention shall not interfere with – a) the freedom to send judicial documents, by postal channels, directly to persons abroad, b) the freedom of judicial officers, officials or other competent persons of the State of origin to effect service of judicial documents directly through the judicial officers, officials or other competent persons of the State of destination, (c) the freedom of any person interested in a judicial proceeding to effect service of judicial documents directly through the judicial officers, officials or other competent persons of the State of destination.”

Water Splash, Inc. v. Menon (2017) 581 U.S. 271, 275.

Here, the proof of service of summons filed on April 21, 2026, indicates service was made by substituted service. Whether or not Canada has objected to Article 10 of the Hague Service Convention is irrelevant. Substituted service is not an authorized alternative method of service permitted by Article 10. The Court notes that under OBCA Section 242(2), “service of any process on a corporation after its dissolution shall be deemed to be sufficiently made if it is made upon any person last shown on the records of the Ministry as being a director or officer of the corporation before the dissolution.” Service was made upon a purported co-founder’s mother, who is undisputedly not a former director or officer of the corporation. Additionally, the process server was told on several occasions that the co-founder he sought to serve did not live at the service address and exhibit A of the declaration of Cordiano indicates several other addresses were located but no information was provided regarding whether any attempts were made to serve the required parties at these addresses.

The Court notes that lack of personal jurisdiction was also raised by Defendant and Plaintiff requested limited jurisdictional discovery. However, the Court is unable to rule on the merits regarding personal jurisdiction until the Summons and Complaint have been properly served.

The Motion to quash service of Summons is **GRANTED** on the grounds that service of the Summons and Complaint is invalid. No proposed order has been lodged as required by Local Rule 5.17(D). Defendant shall prepare the order.

LAKEVIEW LOAN SERVICING, LLC VS. GONZALEZ, ET AL.

CASE NUMBER: 25CV-0207895

Tentative Ruling on Order to Show Cause Re Dismissal: An Order to Show Cause Re: Dismissal (“OSC”) issued on August 7, 2026, pursuant to Gov’t Code § 68608(b) to Plaintiff and Counsel for failure to timely serve pursuant to CRC 3.110(b) and failure to timely prosecute. No response to the OSC has been filed. Sanctions of \$250, and \$500 have previously been imposed and have not been paid. It appears that no lesser sanctions will prompt compliance. This action is **DISMISSED**. The clerk is instructed to prepare a separate Order of Dismissal. No appearance is necessary on today’s calendar.

LANE VS. FCA US, LLC, ET AL.

CASE NUMBER: 24CV-0206212

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions (“OSC”) issued on July 23, 2026, to all parties and counsel for failure to timely file a Mandatory Settlement Conference Statement in violation of CRC 3.1380. All parties have submitted Declarations in response to the OSC which explain the failure to timely file MSC statements. The OSC is **DISHCHARGED**. No sanctions will be imposed. **Trial is set to**